



40 YEARS
OF HOMOSEXUAL LAW REFORM

WELCOME

Kia ora koutou katoa, nau mai, haere mai ki tēnei huihuinga whakahirahira e whakanui ana i te 40 tau mai i te Homosexual Law Reform Act 1986.

In July 2026 we honour the courage of those who stood up for aroha, mana motuhake, and human rights in Aotearoa New Zealand. We acknowledge the struggles, the activism, and the communities who paved the way for greater acceptance and inclusion. We also recognise those who are still fighting for equity and safety today. May this anniversary be a time of reflection, celebration, and commitment to continuing the journey towards justice, dignity, and belonging.



Tiwhanawhana performing a waiata.

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This booklet includes a range of terms and acronyms such as LGBT, LGBTI, LGBTQIA+, and others. These reflect the language used by the organisations, resources, and references included throughout, and have been retained as originally presented. Regardless of the terminology used, this booklet is intended to be inclusive of all rainbow communities.

INTRODUCTION

FRAN WILDE

Forty years on it's difficult to imagine the social chaos caused by the passage of a simple piece of legislation, which was simply the culmination of many decades of work and struggle.

In the 1980s people came together to create the way for decriminalisation of private acts between consenting adults. The social milieu had changed – baby-boomers wanted a world where human rights were honoured; gay men who had been persecuted and criminalised for generations stood up to the pressure; a breed of young parliamentarians were prepared to do the right thing.

I was lucky to be in a position to help bring this together. The real battles were out of Parliament in electorates round the country, where people from all walks of life – and sexual preferences – joined the lobby to persuade MPs to vote yes. The scary public rallies, the quiet meetings and conversations, the stream of media contributions – all helped educate the public that this bill was about ordinary New Zealanders.

But the real heroes were the brave men who came out publicly during that time. They put at risk jobs, family relationships and personal safety to demonstrate to other Kiwis that the terrible propaganda of the bill's opponents was simply wrong.

My deepest thanks and gratitude to them and to all who fought this battle. We didn't win everything, with MPs voting down Human Rights provisions as a form of "insurance". It was passed later and has been followed by other law changes making Aotearoa a safer and more just place.

Let's be vigilant to keep it that way, especially for new generations of the Rainbow community, facing their own challenges in a complex world of angry social media and instant judgements.

Ngā mihi nui,
Fran Wilde | Sponsor of
Homosexual Law Reform



FOREWORD

GAVIN YOUNG & LINDA EVANS

LGBTIQ+ movements in Aotearoa/New Zealand in the 1970s and 80s wanted to change the world. The principle of equality in law underpinned change and required decriminalisation with an age of consent of 16 and protection from discrimination. Queer people from many different communities, perspectives, identities and backgrounds, takatāpui and tauīwi, contributed to the long struggle for legal equality and to expressions of LGBTIQ+ pride.

Queer people including gay men, lesbians and trans people were seen as immoral, sinful, illegal and mentally ill. Prison, psychiatry, blackmail and even murder formed part of their reality. Jack Goodwin, Cees Kooge, Claude Tanner, John McKay and others were the early pioneers of the Dorian Society, the first homosexual organisation, set up in 1962, which in turn established the first political lobby group – the NZ Homosexual Law Reform Society (NZHLRS) – in 1967. It challenged parliament to decriminalise sex between men, through petition and a private member's bill, but without success.

Young activists led Gay Liberation from the early 1970s. Denied a visa to the United States because she was a lesbian, Ngāhuia a Te Awēkotuku turned the issue into the catalyst for the formation of the first organised groups. Focusing on lesbian and gay pride, their objectives were equality and social change. Rae Dellaca, Lindsay Taylor, Nigel Baumber, David Russell and others continued the pressure for reform.

Lesbians actively worked for decriminalisation from the 1960s and against discrimination from the 1970s, coming from both gay liberation and lesbian feminist perspectives which critiqued patriarchal society, highlighted links between excluded groups and emphasised the importance of visibility. The first lesbian organisation Sisters for Homophile Equality (SHE) formed in Christchurch and Wellington in 1973. In Auckland Sharon Alston and Jan Smith were among those setting up Gay Feminists in 1974. Early lesbian activists who continued on to the 1985-86 campaign included Alison Laurie, Sandy (Isabella) Hall and Porleen Simmonds. Lesbian involvement in 1985-1986 was co-ordinated by Lesbian Coalitions in Wellington and Auckland.

IF YOU BELIEVE IN
BASIC HUMAN RIGHTS
FOR EVERYONE

SUPPORT THIS BILL

Although the LGBTIQ+ community had no rights and sex between men was illegal, from 1972 openly gay candidates stood for parliament. In 1977 national celebrity and trans woman Carmen Rupe stood for Mayor of Wellington. By 1995 Georgina Beyer had been elected as the world's first openly trans mayor in Carterton and in 1999 the world's first openly trans Member of Parliament when she won the Wairarapa electorate for Labour. Trans activists continued to press for law reform.

A new style of organisation emerged in 1977 with the National Gay Rights Coalition. Led by Robin Duff, Judith Madarasz and others it continued the push for equality into the early 1980s, creating the conditions for collaboration with Fran Wilde on a Homosexual Law Reform Bill. Gay Taskforces in Auckland, Wellington, Christchurch and Dunedin along with more radical gay and lesbian groups promoted support for the Bill and fought the bitter campaign against the well-funded Christian fundamentalists, including the Salvation Army, in the shadow of the HIV/AIDS epidemic. Fran Wilde and her colleagues including Katherine O'Regan, Trevor Mallard, Annette King and Ruth Dyson fought an equally bitter campaign against opposition in parliament and in electorates. They accepted the principles demanded by the movement, delivering equality – an age of consent of 16 – in the Homosexual Law Reform Bill that passed on 9 July 1986.

Many significant legal changes have followed, in particular the Human Rights Act 1993 which outlawed discrimination on the grounds of sexual orientation.

The passage of both Acts reminds us that equality and justice are not given freely, but won through relentless advocacy and activism, and courage to ensure no one is left behind.

*We are in all families, in all workplaces.
In short, **WE ARE EVERYWHERE!***

LETTERS OF LOVE

LOUISA WALL

Dear whānau, friends, allies, and the generations who brought us here,

Today we celebrate 40 years since Homosexual Law Reform in Aotearoa, a defining moment that affirmed our right to live, love, and exist with dignity. It is a time to honour courage, community, and progress.

Homosexual Law Reform was far more than legislative change. It was a declaration of our humanity and mana, affirming that love is not a crime and equality belongs to everyone. It was achieved through communities who refused silence, who organised, marched, cared for one another, and built solidarity across the country.

In Parliament, Fran Wilde stood as an advocate, carrying the voices of our communities with determination and compassion. Her leadership helped shift the nation toward more inclusive future.

We honour the activists, whānau, takatāpui, trans and queer communities, lesbian parents, gay men lost during the AIDS crisis, and young people who imagined a different world. Their resilience transformed Aotearoa.

This legacy continued through generations, including marriage equality in 2013, building on the foundations laid in 1986. In 2012, when I introduced the Marriage (Definition of Marriage) Amendment Bill, it was with deep gratitude to those who came before us.

Progress is never guaranteed. It is sustained through aroha, solidarity, and collective action. To our rainbow communities, we belong, we are valued, and our future is bright. We remember those we have lost. Your love shaped this journey. Your legacy endures.

Forty years on, we celebrate and recommit to an Aotearoa where everyone can live with dignity, safety, and pride.

Ngā mihi nui,
Louisa Wall | Sponsor of
the Marriage Equality Bill



BILL LOGAN

It might be difficult to imagine the before time – when we lived in the face of overwhelming moral condemnation and constant threats of criminal sanction.

What stands out about the Homosexual Law Reform campaign was not the parliamentary debate, or lobbying MPs. It was not even the final vote. What stands out was the months of social struggle, the meetings in schools and church halls and around dinner tables and in pubs. Sometimes very personal. People coming out. People discovering they had gay and lesbian friends and relations.

The opposition was vicious, and the panic around AIDS made it worse. There were confrontations and violence, but there was also serious engagement. And this country changed – it changed for us. We escaped the pressures to hide. But it changed for everyone. This country became freer, more open to difference.

And the foundation was laid for further reforms — civil unions, marriage equality, and the struggles still ahead. Many who fought then are gone. We honour them by defending what was won, and by extending it.

Bill Logan | Queer Rights
Activist & 40 Years of Love
Organising Committee



GAVIN YOUNG

Kia ora, as a community it is fabulous to be celebrating the 40th anniversary of passing the Homosexual Law Reform Act in 1986.

Let's not forget, the so many lives within our community that the law destroyed, the many men who went to prison, were fined, were blackmailed, lost their families, or had Police inform their employers, with potential job losses to follow.

Let's not forget how the law was also used against homosexually oriented trans people, while lesbians were often treated as mentally ill, denied custody of their kids and along with men forced out of the defence forces if found out.

Let's celebrate the courage of our past communities and activists who challenged the world as it was in the 1960s and 70s and slowly changed it to the world, we have today.

Let's celebrate our fortune in having Fran Wilde and the brave MPs supporting her. Fran shared our vision of equality and fought for it, although she could have taken the path of compromise, as some urged, she took the path of difficulty and justice.

SUPPORT *the* **BILL**

Let's remember the meetings where from the mouths of our opponent's spilled hatred, filth and venom. And celebrate our community who stood up to them.

Let's celebrate the rainbow people and supporters who braved the threats of violence to march in their thousands to support Fran's Bill and see it passed.

Let's celebrate reaching out to the wider community and receiving their support through groups like the Coalition in Support of the Bill and Heterosexuals Unafraid of Gays (HUG).

Let's celebrate that despite our diversity of views, we stood united as a Rainbow community against the outside forces of harm.

Let's celebrate that we won and went on with many supporters and politicians to change our world and acknowledge there is more to do.

Let's be vigilant to the clouds of future storms.

Nga mihi,
Gavin Young | Gay Activist
& 40 Years of Love
Organising Committee



LINDA EVANS

Kia ora koutou,

Appreciating all who contributed on this 40th anniversary and remembering:

The original homosexual members of the Dorian Society Legal Subcommittee who in 1962 began organising for reform.

The activists from gay liberation, women's liberation, lesbian-feminism, the lesbian and gay rights movement who kept the pressure on in the 1970s and added essential experience and perspective in 1985–86.

The lesbians who warned of a strengthening Christian right-wing opposition to abortion and lesbianism at the Women's Forums in the early days of the Ministry for Women's Affairs in 1984.

The debate about having a short, sharp parliamentary campaign or needing a broad campaign of activism, visibility and public education, and ending up with the latter anyway.

Working out ways to work together across such a broad coalition of LGBTQI+ groups despite many political differences, most finding a place in the wide spectrum of activities, and not having to agree about everything.

Confronting the petition opposing the Bill at every turn – on our doorsteps, in our families and whānau, at work and on the streets.

Solidarity with those more isolated and/or unable for any of many reasons to be out.

The astounding number who did come out in some way in their own circles or more widely.

Takatāpui talking to whānau and hapū, others talking to their families and extended friendship networks, workers talking to co-workers, unions and professional bodies.

The debate about whether to out hypocritical opponents of the Bill. Many other debates about tactics, and those who went ahead and organised protests and coalitions anyway.

The violence of the opposition, attending their meetings to make our presence felt, the vitriol of the Members of Parliament leading the opposition on Wednesday evening sittings, and gay men setting up self-defence classes because of the attacks on the streets.

The support of our international communities.

The numbers who came out to marches and rallies in the main centres and in smaller cities, and the one-woman march in support of the Bill in Dargaville.

The endless explanations about ourselves, in private, in public, in the media and in Parliament.

The gay and lesbian photographers, broadcasters and journalists who documented events, and Lesbian Radio and Gay BC who broadcast our perspectives.

The support of feminists, trade unionists and many other non-gay and non-lesbian activists and organisations.

The humour with which we met opposition much of the time, relying on camp and other earlier cultures.

The inspiring acts of courage and commitment by individual lesbians, gay men, trans people and others.

Arohanui
Linda Evans | Lesbian activist
& 40 Years of Love
Organising Committee



MATARIKI STARS

Matariki is the Māori New Year, marked by the rising of the Matariki star cluster (known as the Pleiades) in the mid-winter sky. It is a time of reflection, remembrance, and renewal - a moment to honour those who have passed, to celebrate the present, and to set intentions for the year ahead.

Remembering our Tūpuna

In te ao Māori, tūpuna are the ancestors — those who walked before us and whose lives shaped the world we inherit. To remember our tūpuna is not simply to look backward; it is to honour the path they laid before us and carry their strength and dreams into the future.

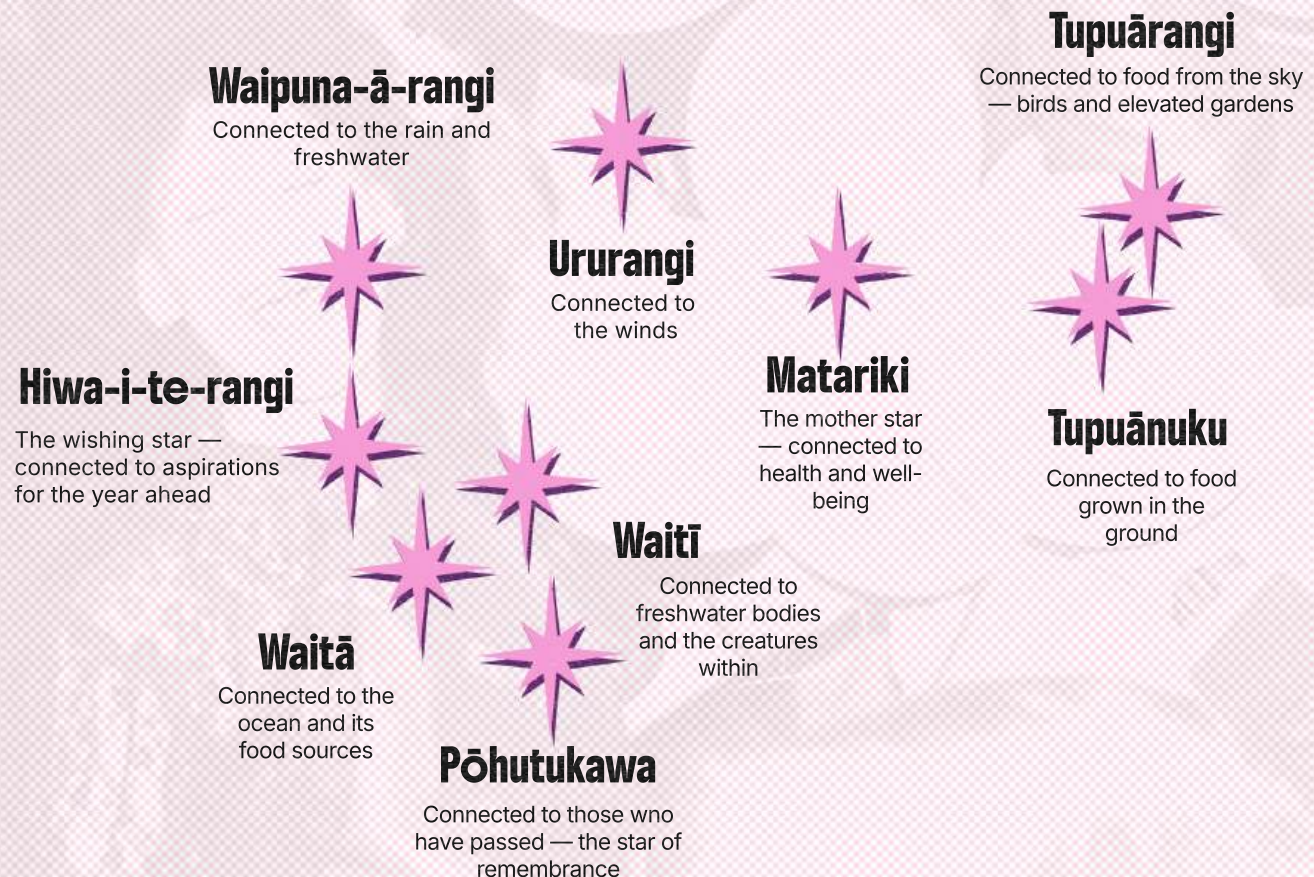
During Matariki, one of the nine stars, the star Pōhutukawa, connects us to those who have died since the last rising of the cluster. It is a time to speak their names, to share their stories, and to let our grief and gratitude sit alongside one another.

Te Kāhui o Matariki

In 2022, Aotearoa New Zealand became the first country in the world to recognise an indigenous celebration as a national public holiday. Matariki is observed each year in late June or early July - the same time we gather to mark the anniversary of the Homosexual Law Reform Act.

As we mark 40 years since the Homosexual Law Reform Act, we hold space for the many people in our rainbow communities who did not live to see this milestone. We remember those who marched, who spoke out, who loved openly in the face of prejudice — and those who could not. We remember the lives lost to the AIDS epidemic, to violence, and to the deep harm of stigma and discrimination.

Their courage made our freedom possible. This celebration belongs to them as much as it belongs to us.



Deloitte.

Together makes progress



The power of together

Deloitte is proud to be a Gold sponsor of the 40th anniversary of Homosexual Law Reform and the national celebration of equality, inclusion and progress in Aotearoa.

LIVES SHAPED BY THE LAW

As Aotearoa marks 40 years since Homosexual Law Reform, we remember not only the campaign, the vote, and the people who fought for change, but also the lives that help us understand why reform mattered. **Allan Aberhart, Peter Rule, and Spencer Maxwell** lived through different moments in our history: before reform, in the years around it, and in the decades that followed. Their stories show how the law, and the societal attitudes around it, reached deeply into ordinary lives — into families, work, service, silence, loneliness, generosity, and hope.

Their lives also point to what reform made possible beyond Parliament. In the years that followed, care for rainbow communities could be named more openly, organised more formally, and carried through institutions such as the Rule Foundation and the Spencer Maxwell Foundation Trust.

Allan Aberhart

Charles "Allan" Aberhart was 37 years old when he was murdered in Hagley Park, Ōtautahi Christchurch, on 23 January 1964.

He had travelled from Blenheim, where he managed Millers drapery store and was remembered by his family as softly spoken, well-dressed, generous, and well respected. He was also a good actor and magician. A man with a life, a family, a place in his community.

Only months before his death, Allan had been imprisoned for three months after being convicted for a consensual sexual encounter with another man. At the time, the law treated men like Allan as criminals. After his murder, the six teenagers charged with killing him were found not guilty.



Portrait of Allan Aberhart

For many, Allan's death made painfully visible what gay men already knew: that prejudice could be written into law, echoed in the courts, and carried into the street.

Decades later, Allan's conviction was wiped. In 2024, on the 60th anniversary of his murder, his whānau and community gathered at dawn in Hagley Park to remember him. Not as a criminal, but as a man whose life mattered.

Carrying Their Stories Forward

Remembering Allan, Peter and Spencer is part of remembering the ancestors of our gay, queer, rainbow, takatāpui and MVPFAFF+ communities: people whose lives, losses, courage and generosity helped shape the world we now inherit. Their stories sit behind the rights and protections many experience today, but they also remind us that safety, dignity and belonging are never finished work.

As we mark 40 years since Homosexual Law Reform, we carry their memory with us into the organising, advocacy and care still needed to build a more accepting and safer future for all. Through the Rule Foundation and the Spencer Maxwell Foundation Trust, some of that work continues in practical form: turning memory, generosity and care into support for those who come next.

Peter Rule

Squadron Leader **Peter Rule** lived a life of service, skill, and quiet determination.

Born in Auckland in 1931 and raised in Gisborne, Peter joined the Royal New Zealand Air Force in the 1950s. He became a pilot, served in Antarctica, survived a widely reported crash on the ice, and later represented New Zealand through United Nations postings in Korea and the Middle East. In 1972 he was awarded an MBE for distinguished service. By any ordinary measure, his career was remarkable.

But Peter was gay at a time when that truth could not safely sit alongside military service. After word reached the senior hierarchy, it was made plain that his Air Force career had no future. He left devastated.

Peter rebuilt his life in the arts, becoming Director of the Central Regional Arts Council and supporting pottery, weaving, carving, and the renaissance of Māori arts. His time in Korea had also sparked a deep interest in Korean art, and he assembled a significant collection of ceramics.

Spencer Maxwell

Spencer Maxwell was born in NZ in 1934 and lived to see nearly forty years pass since Homosexual Law Reform. Though society changed remarkably during his lifetime, legal change does not always reach the quietest rooms of a person's heart. For most of his years, Spencer kept his sexuality almost entirely to himself, confiding in only a few close friends much later in life.

To the outside world, Spencer's life followed a familiar path: work in retail, overseas travel, Air Force training, teaching, retirement, and volunteer service. He gave generously of his time to others, including those experiencing addiction and older people needing support.

That dedication to helping others, paired with his own life's challenges, inspired the creation of the Spencer Maxwell Foundation Trust. Established while Spencer was still alive with his closest life-long friend, the Trust supports people who may otherwise struggle to access help with mental health, addiction, sexuality, gender, and identity.

Peter died by suicide in 1987. In his will, he left part of his estate to help gay people experiencing isolation, loneliness, and disadvantage. The sale of his Korean ceramics helped establish the Rule Foundation's original capital fund.



Portrait of Peter Rule in a plane.

Spencer lived through enormous legal and social change. Yet, his life is a powerful reminder that being seen as we want to be seen still depends on support, acceptance, and having somewhere safe to live exactly as we are.



Photograph of Spencer Maxwell at a garden.

QUEER HISTORY TIMELINE

The journey towards equality for LGBTQI+ people in Aotearoa New Zealand has been shaped by generations of courageous individuals, activists, allies, organisations, and communities who challenged discrimination and advocated for change.

Stand up for Human Rights

*March in support of the
Homosexual Law Reform Bill*

PrideNZ

Discover local Rainbow+ histories at **PrideNZ.com**. This free community archive shares over 1,000 audio recordings, totalling more than 600 hours, including life stories dating back to the 1940s, event recordings from the 1960s onward, and interviews and news items spanning the early 1900s to today.

This timeline highlights some of the key moments, milestones, and movements that have contributed to advancing human rights, visibility, inclusion, and legal recognition for LGBTQ+ people. While no timeline can capture every story or contribution, it reflects the collective efforts of those who have worked to create a more just and equitable society.

Their legacy continues to inspire us as we shape the future together.



"Bigot Busters" icon.

Full transcripts, community keywords, summaries and free datasets make the collection easy to search, analyse and explore with AI tools. Hear voices across decades of activism, creativity, resilience and change. Visit <https://www.pridenz.com>

Kawe Mahara Queer Archives Aotearoa

Kawe Mahara Queer Archives Aotearoa (formerly known as LAGANZ- Lesbian and Gay Archives of New Zealand) collects, preserves and makes available for research the records and personal papers of queer and takatāpui people and organisations in Aotearoa New Zealand.

Kawe Mahara Queer Archives Aotearoa welcomes the many intersections with other identities, communities and politics that 'queer' holds. Kawe means 'to carry, convey, bear' and mahara means 'memory, recollection, knowledge'. Kawe Mahara stands for carrying the memories of all our takatāpui and queer communities in Aotearoa from the past, present and future, so that our communities can grow and thrive. Having survived an arson attack in the 1980s, and kept alive by volunteers through decades of discrimination, Kawe Mahara is a testament to the power of community archives.

Aotearoa's first Queer History Month, with te reo Māori name Pūmahara la Te Wā, was launched in July 2024, breathed into being by Kawe Mahara Queer Archives Aotearoa. Kawe Mahara chose July as the month for Aotearoa's Queer History month to mark the passing of the Homosexual Law Reform Act in Aotearoa on 9 July 1986, and stress the importance of preserving and sharing Aotearoa's iconic yet under-shared queer histories. <https://www.laganz.org.nz/>



Topp Twins performing at a queer support event.

1800s

There is no evidence of tikanga or pre-colonial legal norms that prohibited consensual same-sex intimacy. The criminalisation of same-sex relationships were colonial impositions, not indigenous ones.

The English Laws Act 1858 was enacted. It provided the formal legislative basis for the reception of English law in New Zealand, giving it retrospective effect to 1840. This included the Offences Against the Person Act 1828 (UK), the Offences Against the Person Act 1861 (UK), and the Vagrancy Act 1824 (UK) which were used to criminalise and police sexuality and gender.

The Offence Against the Person Act 1867 was enacted. It followed the English model instituting a maximum penalty of hard labour for male same-sex intimacy and similarly criminalising attempts.

The Police Offences Act 1884. Introduced vagrancy and public disorder offences that functioned as a parallel system of control, later replaced by the **Police Offences Act 1927.**

The Criminal Code Act 1893 was enacted. It retained a maximum penalty of hard labour for life for adult male same-sex intimacy, continued to criminalise attempts, and added an explicitly violent sanction: those convicted were also liable "according to his age, to be flogged or whipped once, twice, or thrice."

The Crimes Act 1908 was enacted. It retained the same core penalties for male same-sex intimacy and attempts.

1900s

The Crimes Amendment Act 1941 was enacted. It introduced a general ban on whipping as a sentencing option.

The Criminal Justice Act 1954 was enacted. It removed hard labour from the criminal law.

1959 - The Attorney-General and Minister of Justice, The Honourable Henry Greathead Rex Mason MP (Labour) reportedly considered reducing the criminal penalties on male same-sex intimacy, influenced by the suicide of a gay friend.

The Crimes Act 1961 was enacted. Section 141 prohibited "indecently between males", capturing a wide range of male same-sex sexual conduct. The maximum penalty was five years' imprisonment. Section 142 separately criminalised "sodomy", punishable by up to seven years' imprisonment. Section 146 extended criminal liability beyond the sexual acts themselves to the social infrastructure of gay life, prohibiting keeping a "place of resort for homosexual acts", with a maximum penalty of ten years' imprisonment.

1962 - New Zealand's first gay organisation - the Dorian Society - a social group for homosexual men is formed.

1967 - the New Zealand Homosexual Law Reform Society (NZHLRS) - the first political lobby group for homosexuals is formed. Both lesbians and homosexual men were members.

1968 - NZHLRS petitions' parliament to decriminalise sex between men. Parliament rejected the idea.



Archival photograph of a queer protest.

1972

Activist Ngahuia Te Awekotuku is denied U.S. visa for being openly a lesbian. Fed up with discrimination, she calls on her comrades to create Aotearoa's first **Gay Liberation Front** in Auckland.

Hedesthia, the first transgender organisation on record in Aotearoa, is formed in Lower Hutt.

Gay Liberation's first protest, "**Gay Day**," is held in Auckland's Albert Park.

1973

The first lesbian-feminist activist group in Aotearoa, **SHE (Sisters for Homophile Equality)** is formed in Christchurch, with a second chapter following not long after in Wellington.

1974 - Opposition Member of Parliament, Venn Young (National), introduced a Member's Bill proposing to decriminalise male same-sex intimacy in private between consenting adult males 21 years and over. The Bill failed at second reading, being voted down by 34 votes to 29.

Dr Gerard Wall MP (Labour) proposed the insertion of a new clause to Venn Young's Bill, which would have created a criminal offence aimed not at homosexual conduct, but at the propagation of acceptance of homosexual behaviour. The amendment was swiftly and publicly distanced by Prime Minister, The Right Honourable Bill Rowling, with reporting indicating that it was "virtually killed" at the executive level.

1977

The first **Vinegar Hill camp** took place over New Year in the Manawatu. Beginning with only six campers, the event grew into an annual queer camping experience open to everyone.

The **New Zealand Homosexual Law Reform Society** made submissions to the select committee considering the Human Rights Commission Bill, urging that "sexual orientation" be included as a prohibited ground of discrimination. The select committee rejected the inclusion of sexual orientation.

The **National Gay Rights Coalition** is formed.

Carmen Rupe runs for Mayor of Wellington.

1979 - The Honourable Warren Freer MP (Labour) proposed to introduce a Member's Bill that decriminalised male same-sex intimacy between males 20 years and over, and whom were capable of giving genuine consent. The Bill was never introduced to the ballot.

The National Gay Rights Coalition argued that any reform that entrenched an unequal age of consent was viewed not as a pragmatic step forward but as a betrayal of the principle of equality. It actively opposed the Bill. The Honourable Warren Freer MP (Labour) never introduced the Bill to the ballot.

1980 - The Honourable Warren Freer MP (Labour) revived his earlier proposal by lowering the age of consent from 20 to 18, and removing the earlier carve outs for Police and the armed forces,



Three men at the Vinegar Hill camp.

The **Manawatu Gay Rights Association** is formed in Palmerston North - and it is now Aotearoa's longest running queer organisation.

meaning that sexual orientation would no longer operate as a basis for exclusion from the armed forces or Police. It was not supported by many in the gay community, namely due to the unequal age of consent. It was never introduced to the ballot.

The Human Rights Commission rejected representations from the National Gay Rights Coalition asking that the Commission add "sexual orientation" as a prohibited ground of discrimination in the Human Rights Commission Act 1977. The Commission considered that homosexuality was not a "status" under international law and said that ground was not entitled to anti-discrimination protection.

The Equality Bill Campaign was started. The Campaign was established by a task force of

lawyers and other professionals early in 1980, with the express intention of drafting a comprehensive bill that would amend the Crimes Act 1961 so as to remove all legal discrimination against homosexuals.

The proposed bill was never introduced to Parliament namely due to opposition from lesbian activists who were opposed to aspects of the proposed bill.

1981 - The Summary Offences Act 1981 was enacted. While neutral in its drafting, the Act enabled the policing of sexuality and gender.



Chrissy Witoko and Carmen Rupe.

1984

Chrissy Witoko opens the **Evergreen Coffee Lounge** in Wellington, providing a friendly social environment for local queer people and other marginalised communities.

1985 - In March, Fran Wilde introduced to parliament her Homosexual Law Reform Bill. Its two parts sought to decriminalise sex between men with an age of consent of 16 and include sexual orientation as a ground for complaint of discrimination under the Human Rights Commission Act. A massive campaign both inside and outside parliament resulted over the following 16 months, including large public meetings and a petition against the Bill and huge protests and street marches in support.

1986 - The Homosexual Law Reform Act was enacted. It was ushered in by The Honourable Fran Wilde MP (Labour) as a Member's Bill. It decriminalised male same-sex intimacy at the same age of consent as heterosexuals. Part II of the Bill, which would have protected homosexuals from discrimination, failed. The Bill itself was passed on 9 July 1986 by a narrow

1990 - Advocacy to get "sexual orientation" added into the prohibited grounds of discrimination in the New Zealand Bill of Rights Act 1990 failed.

The Human Rights Commission Amendment Bill 1990 was introduced to Parliament. It proposed the inclusion of sexual orientation, defined to encompass heterosexual, homosexual, and bisexual orientation, and

including "transsexual, transvestite, and hermaphroditic" conditions, and expressly excluded paedophilic orientation.

However, following the change of government from Labour to National, the scope of reform narrowed considerably. Ultimately, only age was added as a prohibited ground.

1991

First AIDS Memorial Quilt unfolding ceremony in Aotearoa.

1993 - The Honourable Katherine O'Regan MP (National) sponsored a Supplementary Order Paper to amend the Human Rights Bill to outlaw discrimination on the grounds of sexual orientation and "the presence in the body of organisms capable of causing illness" (i.e. having HIV). The Paper was approved and the Human Rights Act 1993 was passed.

1995 - The Births, Deaths, Marriages, and Relationships Registration Act 1995 introduced a statutory mechanism enabling adults to apply to the Family Court for a declaration that their birth certificates record their nominated sex.

1995

1997

Georgina Beyer is elected Mayor of Carterton - becoming the first openly trans mayor in the world.

Re GJ: the Refugee Status Appeals Authority accepted that sexual orientation can be a "particular social group" claim under the Refugee Convention.

Mani Mitchell creates the Intersex Society of New Zealand.



AIDS Memorial Quilt.

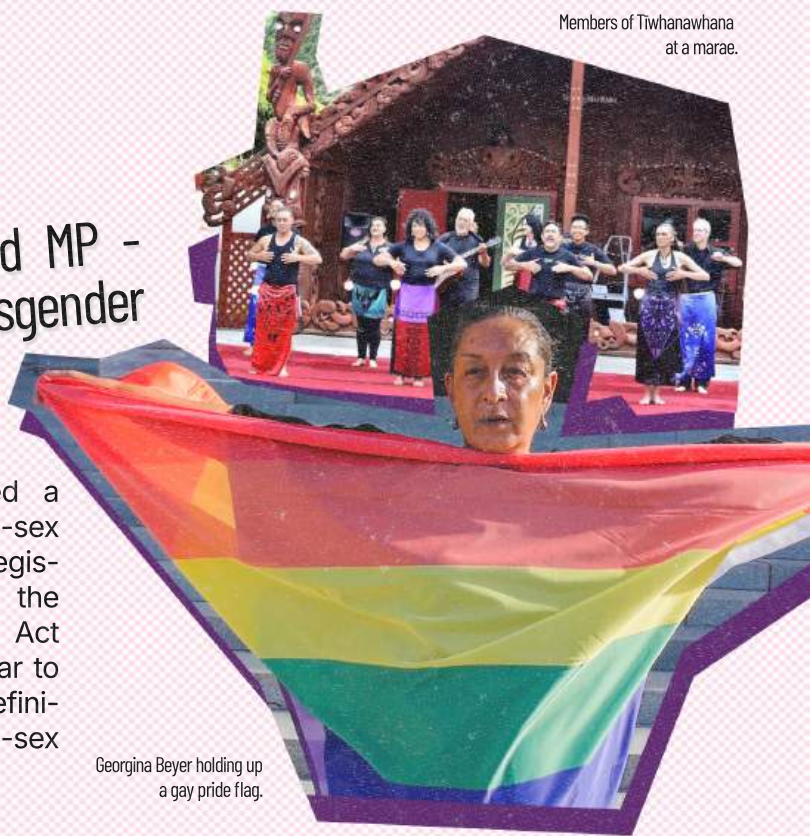
Quilter v Attorney-General: the Court of Appeal rejected the argument that the Marriage Act 1955 could be read, via section six of the New Zealand Bill of Rights Act, as permitting same-sex marriage to avoid discrimination.

1999

Georgina Beyer elected MP - world's first openly transgender Member of Parliament.

The Law Commission published a Study Paper on recognising same-sex relationships. It recommended a registration-based model, similar to the Danish Registered Partnership Act 1989, which endowed rights similar to marriage. It rejected altering the definition of marriage to include same-sex couples.

Georgina Beyer holding up a gay pride flag.



Members of Tiwhanawhana at a marae.

2001

Tiwhanawhana, a takatāpui community group, is founded in Wellington.

The Property (Relationships) Amendment Act 2001 extended the relationship property regime to de facto couples, whether opposite- or same-sex.

Parallel amendments including in the Administration Amendment Act 2001 and the Family Protection Amendment Act 2001 ensured that same-sex partners could inherit on intestacy and bring family provision claims in the same manner as spouses.

2002 - The Sentencing Act 2002 expressly recognised hostility based on sexual orientation and gender identity as an aggravating factor.

2004 - The Civil Union Act 2004 was enacted. It introduced a legally recognised status open to both same-sex and opposite-sex couples, and carried rights and obligations equivalent to marriage.

The Status of Children Amendment Act 2004 conferred parental status on the consenting same-sex partner of a birth mother where assisted reproduction was used.

In 2004, a Member's Bill sponsored by Georgina Beyer MP (Labour) sought to amend the Human Rights Act to explicitly include "gender identity" as a prohibited ground of discrimination. Beyer withdrew this Bill after a legal opinion from the Acting Solicitor-General concluded that discrimination against transgender people was likely already protected by the Human Rights Act 1993.

2005 - The accompanying Relationships (Statutory References) Act 2005 amended approximately 100 statutes to ensure consistency across the statute book, avoiding a piecemeal approach.

The Marriage Amendment (Gender Clarification) Bill 2005, selected from the ballot in the name of Larry Baldock MP (United Future), though it was his colleague, Gordon Copeland MP (United Future) who initially sponsored it, sought to entrench a heterosexual definition of marriage and to amend section 19 of the New Zealand Bill of Rights Act. The Bill was defeated at first reading by 73 votes to 47.

2007 - Adoption Application by T: T, a single gay man, applied to adopt his two-year-old nephew, whom he had effectively parented since birth, with the mother's consent and the father absent. It was the first time a gay single male applied to adopt a male child. The adoption order was granted.

2008 - The Births, Deaths, Marriages, and Relationships Registration Amendment Act 2008 extended access to sex marker changes on birth certificates to overseas-born New Zealand residents and citizens.

"Michael" v Registrar-General of Births, Deaths and Marriages: the Family Court held that legal gender recognition does not require full gender reassignment surgery.

First NZ **'Pink Shirt Day'** run by several queer youth groups throughout the country.



Former prime minister Jacinda Adern participating in a pride parade.

2013 - The Marriage (Definition of Marriage) Amendment Act 2013 was enacted. Introduced as a Member's Bill by Louisa Wall MP (Labour) and accompanied by a parallel Bill submitted to the ballot by Kevin Hague MP (Green), the legislation reframed marriage in explicitly inclusive terms. The Bill passed at third reading by a margin of 77 votes to 44, following a conscience vote.

The Human Rights Commission publishes **To Be Who I Am**, a landmark nationwide inquiry into discrimination experienced by transgender people in Aotearoa New Zealand. It was the world's first inquiry by a National Human Rights Institution into discrimination experienced by transgender people.

2009 - The repeal of the partial defence of provocation in the Crimes (Provocation Repeal) Amendment Act 2009 removed the doctrinal space in which "gay panic" arguments had historically been advanced.

2011



Participants of Pink Shirt Day in the crowd formation of a heart.



LegaliseLove founded.

First **Queer the Night March** in Wellington - catalyses the formation of the **Queer Avengers**.

2015 - Re Pierney: the High Court held that same-sex de facto partners could adopt.

2018 - The Criminal Records (Expungement of Convictions for Historical Homosexual Offences) Act 2018 established a formal scheme allowing men convicted of certain consensual homosexual offences to apply to have those convictions expunged.

2020

InsideOut leads Aotearoa's first National Schools' Pride Week.



Queer Endurance in Defiance founded, and host their first protest against an anti-transgender seminar.

2021



Members of Queer Endurance in Defiance at a protest rally.

The Births, Deaths, Marriages, and Relationships Registration Act 2021 was enacted. It fundamentally reoriented the legal framework governing sex registration toward a self-identification model.

The Births, Deaths, Marriages and Relationships Registration Act passes, allowing self-identification of a person's sex on their birth certificates.



Crowd of people outside a Nevertheless store.

Nevertheless is founded, initially as a clothing brand but transforming into a Māori, Pasifika and Takatāpui Rainbow+ mental health non-profit organisation.

Adhikaar Aotearoa, an educational and support service for queer people of colour becomes a registered charity.

2022

Conversion therapy banned — **Conversion Practices Prohibition Legislation Act.**

The Conversion Practices Prohibition Legislation Act 2021 was enacted. It criminalised practices intended to change or suppress a person's sexual orientation, gender identity, or gender expression.



Trans Liberation Alliance lead a massive protest in Auckland, in response to British anti-trans campaigner Posie Parker's speaking tour.

2023

Mana Tipua is established following a Takatāpui Taiohi Ora Hui run at Rehua Marae in by InsideOUT Koaro, where a need was identified for a Te Waipounamu (South Island) based kaupapa Māori service to support takatāpui youth.

The Lesbian and Gay Archives of New Zealand, Te Pūranga Takatāpui o Aotearoa, changes name to **Kawe Mahara Queer Archives Aotearoa**.

2025 - The Law Commission published its review of the Human Rights Act 1993 regarding protections for transgender, non-binary and intersex people. It recommended explicit protection for these groups in the Act.



Pride hiko to Parliament.

WHAT STILL NEEDS TO BE DONE?

Forty years after Homosexual Law Reform changed Aotearoa New Zealand, there is much to celebrate. The 1986 law change marked a turning point, removing criminal penalties for sex between consenting adult men and helping pave the way for wider social and legal progress. Since then, rainbow communities have seen significant advances - including stronger anti-discrimination protections, marriage equality, improved legal gender recognition, and growing visibility and acceptance across society. Importantly, the law change also removed barriers to education and health promotion and began a process that would enable the relative success of the Aotearoa approach to HIV prevention, care, treatment and anti-discrimination.

But progress is not the same as completion. Equality remains unfinished work, and many Rainbow people continue to experience barriers that affect safety, dignity, health, and belonging.

Stronger Legal Protections

One area for future progress is ensuring laws fully protect all members of rainbow communities. Existing human rights protections were created decades ago and do not explicitly recognise all identities, including transgender, non-binary, and intersex people. Some definitions within current law also no longer reflect the diversity of sexuality and gender understood today.

Safety, Respect and Inclusion

Creating a society free from hostility and exclusion remains important. New Zealand's hate speech protections currently do not cover sexual orientation, gender identity, or sex characteristics. Public debates about gender and identity continue to highlight the importance of laws that protect dignity while supporting respectful democratic discussion.

Supporting Rainbow Whānau

Rainbow families can still encounter barriers that many others do not. Some people face challenges accessing fertility support or surrogacy pathways. Family law and parenthood recognition do

not always reflect the diversity of modern families, including chosen family networks that play an important role for many LGBTQIA+ people. Questions are also emerging about how laws may evolve alongside changing understandings of family structures.

As many of our Rainbow Whānau age, we must consider care and understanding in retirement villages and community."

Fair and Accessible Healthcare

Healthcare equity remains another significant issue. Rainbow communities can experience unequal access to healthcare services, insurance coverage, and culturally safe care. Some transgender people continue to encounter barriers accessing gender-affirming healthcare, while concerns remain around healthcare access for migrants, international students, and others whose needs are not always reflected within existing systems.

For people living with HIV, advances in treatment have transformed lives and reduced transmission risk dramatically. However, laws and public understanding have not always kept pace with modern science. Reducing stigma and ensuring policy reflects evidence remains an important part of creating healthier communities.

Bodily Autonomy and Intersex Rights

Intersex people continue to raise important questions about bodily autonomy, informed consent, and access to information about medical decisions made in childhood. These conversations remind us that fairness is not only about equal treatment, but also about ensuring people have agency over decisions affecting their lives.

Building Inclusive Systems

There are also broader issues that shape everyday experiences — privacy protections, access to affirming education environments, protection from conversion practices, public health responses, and ensuring people's identities are recognised and respected throughout life.

**SUPPORT
LESBIAN &
GAY
RIGHTS**

**CELEBRATE
BEING
LESBIAN
& GAY**

Support Lesbian Rights

Support Gay Rights

Global Support

While we work to get and keep the rights, access, programmes and attitudes for all of our communities to live in an Aotearoa that is safe, secure, equitable and supportive, we can also consider how we can support goals like this in the rest of the world.

We should ensure that communities and government support the goals and international programs that have provided much of the support, development opportunities and resources. These have helped build stronger health, human rights and social support systems. These are vital for communities like ours that are still excluded, illegal and marginalised in many countries, including in Asia and the Pacific.

Conservative governments, have turned their back and withdrawn funds from the United Nations, World Health Organisation and other international bodies that have worked, since World War 2 ended, to share equally health, human rights and economic development.

For our communities, this also includes the Global Fund to fight AIDS, TB and Malaria, without which access to HIV treatments would be limited in many low income countries.

Looking Forward

The next chapter of Rainbow rights in Aotearoa is not only about changing laws. It is about building communities where everyone can participate fully and safely, where diversity is respected, and where dignity belongs to all people.

The story of Rainbow progress in New Zealand has always been driven by courage, advocacy, and collective action. Forty years after Homosexual Law Reform, that work continues — not because progress has failed, but because every generation has the opportunity to build a more inclusive future than the one they inherited.

RAINBOW AWARENESS CALENDAR

A recurring annual calendar with fixed and recurring observance dates.

FEBRUARY

Third week of
February

**Aromantic Spectrum
Awareness Week**



MARCH

1 March
31 March

**Zero Discrimination Day
Transgender Day of Visibility
(TDOV)**



APRIL

6 April
Last week of April
26 April

**International Asexuality Day
Lesbian Visibility Week
Lesbian Visibility Day**





MAY

First Sunday in May
Third Friday in May
Third Sunday in May
17 May

International Family Equality Day
Pink Shirt Day (NZ)
International AIDS Candlelight Memorial
IDAHOBIT (International Day Against Homophobia, Biphobia, Intersexism and Transphobia)
Agender Pride Day
Pansexual & Panromantic Visibility Day
LGBTQ+ Domestic Violence Awareness Day



JUNE

19 May
24 May
28 May

28 June **Stonewall Riots Anniversary**



JULY

Queer History Month Aotearoa — Pūmahara Ia Te Wā

9 July
Week of 14 July
14 July
16 July

Homosexual Law Reform Anniversary (NZ)
Non-Binary Awareness Week
International Non-Binary People's Day
International Drag Day



People marching at a Pride hiko.

AUGUST

All month
19 August

**Transgender History Month
Anniversary of Marriage
Equality in New Zealand
Transgender Flag Day**



SEPTEMBER

Week including 23
September
23 September

**Bisexual Awareness
Week
Celebrate Bisexuality
Day / Bi Visibility Day**



OCTOBER

8 October
11 October
Third Wednesday in
October
Last full week in
October
26 October

**International Lesbian Day
International Coming Out Day
International Pronouns Day**

**Asexual Awareness Week
(Ace Week)
Intersex Awareness Day**

NOVEMBER

8 November
13–19 November
20 November

**Intersex Day of Remembrance
Trans Awareness Week
Transgender Day of
Remembrance (TDOR)**



DECEMBER

1 December
8 December
10 December

**World AIDS Day
Pansexual Pride Day
Human Rights Day**





Lambda: This was a symbol for the New York chapter of Gay Activists Alliance in 1970, one year after Stonewall. In 1974, the International Gay Rights Congress held in Edinburgh, Scotland adopted it as a symbol for lesbian and gay rights. It was also used widely in Aotearoa.

Russell McVeagh

Supporting 40 years of love in Aotearoa

Russell McVeagh is proud to support the 40th anniversary of the Homosexual Law Reform Act, honouring those who led change and standing with Rainbow communities to celebrate diversity and inclusion across Aotearoa.

OUR SUPPORTERS

We are grateful to the businesses and organisations that have contributed to making this festival possible.

GOLD SUPPORTERS

Deloitte.

**ROCKET
WERKZ.**

MinterEllisonRuddWatts

SILVER SUPPORTERS



Russell
McLeagh

THE CHRISSY WITOKO
MEMORIAL TRUST

RULE FOUNDATION
rulefoundation.nz



BRONZE SUPPORTERS

BUDDLE
FINDLAY



THE TINDALL FOUNDATION

The **Tindall Foundation** has a long and committed history of walking alongside the communities of Aotearoa New Zealand. Founded by Stephen and Margaret Tindall, it was built on a deep commitment to generosity, equity, and care for both people and the environment.

www.tindallfoundation.org.nz

RULE FOUNDATION

The **Rule Foundation** was established from the estate of Peter Rule to support the health, wellbeing and visibility of rainbow and takatāpui communities in Aotearoa. Today, it carries forward that legacy through its own grantmaking, its management of the Rainbow Wellbeing Legacy Fund - established as part of reparations for those convicted before homosexual law reform, and its partnerships with other philanthropic organisations. Together, this work helps increase the resources flowing to our communities. Last year, the Foundation directly distributed more than \$800,000.

www.rulefoundation.nz

THE CHRISSY WITOKO MEMORIAL TRUST

Originally set up in 2000 as the Afterlife Memorial Trust in order to assist those with HIV/AIDS for expenses and funeral services. Changing to the CWMT in 2003 after Chrissy Witoko's passing and becoming a registered charity in 2009 the CWMT now helps fund people, organisations and groups in the LGBTQI community in times of need

Contact – info@scottyandimals.co.nz

SPENCER MAXWELL FOUNDATION

Continuing Spencer Maxwell's legacy, our Charitable Trust removes barriers to mental health and addiction support. We focus on individuals who slip through the gaps in public services and cannot afford private care, with a targeted emphasis on uplifting Rainbow Communities. Beyond direct support, we broaden our impact by backing existing services and piloting new innovations across Aotearoa New Zealand.

www.spencermaxwellfoundation.org.nz

ACKNOWLEDGEMENTS

As we mark the 40th anniversary of Homosexual Law Reform, we honour the countless individuals who advocated, organised, challenged prejudice, and worked tirelessly for equality. We pay particular tribute to the campaigners, community leaders, volunteers, allies, and parliamentarians whose courage and determination helped secure the passing of the Homosexual Law Reform Act in 1986. We acknowledge the leadership of **Fran Wilde** and the many activists and organisations whose collective efforts changed the course of New Zealand history. We also acknowledge the thousands of New Zealanders who shared their stories, challenged discrimination, wrote submissions, marched, protested, voted, and stood alongside their whānau, friends, and communities in pursuit of equality. We particularly remember those who are no longer with us. Their vision, perseverance, and sacrifice helped create the freedoms and protections many enjoy today, and their legacy continues to inspire future generations.

The 40 Years of Love commemorations have been made possible through the generosity, wisdom, and dedication of many people who have freely given their time, expertise, and stories. We acknowledge and thank **Gareth Watkins, Lori Leigh, Roger Swanson, Roger Smith, Nate Rowe, Kevin Haunui, Kawe Mahara, PrideNZ**, and our sponsors for their contributions.

The history timeline and *What Still Needs to Be Done?* section have been adapted with thanks from **Vinod Bal's** *LGBTI+ Rights in Aotearoa New Zealand: The Past and the Future* (Adhi-kaar Aotearoa, Wellington, 2026).

Photographs and additional assets have been provided by **David Hindley, Peter Nowland, Gareth Watkins, Rain Heather-Maria Hortillosa, Kiah DeRose, Mark Mitchell, Fiona Goodall, Eva Cinder, Nicole Duvall, the Alexander Turnbull Library, Tiwhanawhana, the Wellington Lesbian Coalition, the Wellington Gay Task Force, Vinegar Hill Camp, Te Papa Tongarewa, Queer Endurance in Defiance, Nevertheless**, and the **New Zealand Herald**. Where possible, all photographers and creators have been credited. Some photographs remain unattributed. If you have information that may help identify the creators of these works, please contact us at contact@40yearsoflove.nz.

The 40 Years of Love programme, including the events, website, and commemorative programme, has been produced voluntarily by **Craig Watson**.

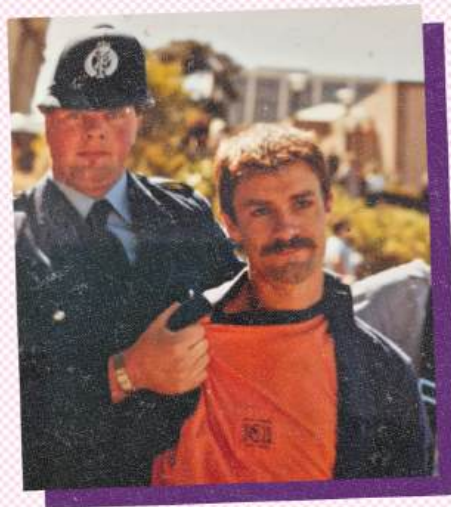
To everyone who has played a part in this journey over the past forty years: thank you. This celebration stands on the shoulders of those who came before us and belongs to all who continue the work of building a more inclusive Aotearoa New Zealand.

For more information and to read the Letter of Love, please visit 40yearsoflove.nz.

We extend our heartfelt thanks to the organising group whose commitment and volunteer efforts have helped bring these events, this commemorative programme, and the wider festival to life. In particular, we acknowledge **Bill Logan, Gavin Young, Linda Evans, Rob Lake, Amal Samaha**, and **Craig Watson**.

We also acknowledge the Members of Parliament and Parliamentary staff who have supported this kaupapa and helped make these commemorations possible, including **Glen Bennett, Vanessa Weenink, Georgie Dansey**, and **Kahurangi Carter**.

We are grateful to **Julian Schönfeld** for creating the '40 Years of Love' brand and to **Rain Heather-Maria Hortillosa** for the design of this commemorative programme. We also acknowledge the enduring influence of **Neil Costelloe** (1960–1990), whose life and legacy inspired elements of its design.



Neil Costelloe accosted by the NZ Police during a rally at Parliament, September 1985.

A celebration of progress



We're proud to support 40 years since the passing of the Homosexual Law Reform Act, a landmark moment that helped transform Aotearoa New Zealand into a more inclusive society.

MinterEllisonRuddWatts.

40 YEARS OF HOMOSEXUAL LAW REFORM

